Township of NIPISSING
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REPORT TO COUNCIL

Date: June 6, 2025

From: John-Paul Negrinotti, Land Planning & Technology Administrator
Kris Croskery-Hodgins, Municipal Administrator-Clerk-Treasurer

Re: Comments on Bill 17, *Protect Ontario by Building Faster and Smarter Act, 2025*

Background:

Council received notification on the proposed changes being sought by Bill 17 in a Memo from Township planning consultants MHBC and from the Township's Land Planning & Technology Administrator at the May 24, 2025 meeting.

There were questions and concerns on the proposed changes and all information was not readily available. Council had requested that comments be composed and information researched in order to address the concerns.

Results:

1. The proposed 10% "as of right" variance to set backs not requiring the Minor Variance procedure. Concerns were raised regarding building in the flood plain, disruption of the water yard requirement and vegetation and the side yard set back to provide fire break protection of dwellings and structures.

The following clarifications were received from MHBC:

A. To date, there are no prescribed regulations that have been issued by the Province to determine exactly how and where this would work.
B. The proposed development would have to be within a prescribed percentage of the required setback on specified lands.
C. Specified lands are parcels of urban residential lands outside of the Greenbelt Area, and exclude areas such as hazardous lands, and lands near shorelines and railways.
D. From our initial review, any properties along the shoreline or within the floodplain would not have this regulation apply.
E. There is still the Provincial interest of "the protection of public health and safety" under the Planning Act which should address concerns about fire buffers.
F. We understand that there are requirements under the Ontario Building Code when it comes to fire separation and building standards for buildings, that govern these types of issued in different municipalities.
G. What the potential 10% clause means in this case is that a new building could be located 5.4 metres from a side lot line, as of right (if passed in legislation). If there are concerns with this, then the Township could potentially look at increasing the standard on the basis of separation between buildings in the rural area.

H. The intent is to reduce minor variances where new buildings and structures are close to the minimum setback.

2. Proposed regulation changes for Complete Application Requirements may start a time clock on an application that would prevent adequate information be gathered and required studies would no longer be accepted, denying Council and Committee of Adjustment members crucial information needed to make informed decisions.

The following clarifications were received from MHBC:

A. Similar to above, there are no prescribed regulations that have been issued by the Province to determine exactly how and where this would work.
B. Descriptions on how this would work has not been specified by the Province nor have they provided some examples.
C. It's an opportunity for us to comment and say "RPPs should provide planning reports, PEngs for engineering reports" etc.
D. In terms of processing, there is a difference between "deeming an application complete" and reviewing the application and providing comments to the professional through the process.
E. The intent of the process is that applications are deemed complete "sooner" in the process – there is still an opportunity to go back and forth with the professional.

As a result of the clarifications received, it is staff's recommendation to refrain from providing additional comments on Bill 17. When AMO provides an opinion on Act 17, Council may wish to support or review the recommendations made and amend any proposed comments to be submitted.

Respectfully,

John-Paul Negrinotti, Land Planning & Technology Administrator
Kris Croskery-Hodgins, Municipal Administrator-Clerk-Treasurer